

Amendment No. 2 to HB1671

Rudd
Signature of Sponsor

AMEND Senate Bill No. 1788

House Bill No. 1671*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following as a new part:

7-51-2801.

(a) A local governmental entity shall not relocate a homeless individual to another jurisdiction unless:

(1) The local governmental entity receives written consent for such relocation from the receiving jurisdiction; and

(2) The relocation is made through a program established by the local governmental entity for the purpose of reuniting homeless individuals with their place of origin when proof of substantial ties to the place of origin exists.

(b) This section does not apply to a local law enforcement agency.

7-51-2802.

(a) A local governmental entity shall not use public funds to relocate homeless individuals to other jurisdictions unless:

(1) The local governmental entity verifies that housing and other necessary services are available for the homeless individuals in the receiving jurisdiction; or

(2) The relocation is made through a program established by the local governmental entity for the purpose of reuniting homeless individuals with their place of origin when proof of substantial ties to the place of origin exists.

(b) This section does not apply to a local law enforcement agency.

7-51-2803.

A jurisdiction that is affected by a violation of § 7-51-2801 or § 7-51-2802 may seek damages and injunctive relief against the local governmental entity.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.